

the purchase-money by *parol*, even though it be otherwise expressed in the deed.

In *Kirk v. Webb* (*e*) the Court refused to admit evidence, and the decision was followed in subsequent cases (*f*); however, the doctrine, though supported by numerous precedents, has since been clearly overthrown by the concurrent authority of the most distinguished judges (*g*).

*** Purchase by an agent.** — The rule as at present [*168] established will not warrant the admission of *parol* evidence, where an estate is purchased by an *agent*, and no part of the consideration is paid by the employer; for though an agent is a trustee in equity, yet the trust is one arising *ex contractu*, and not resulting by operation of law (*a*). The agent may be indicted for perjury in denying his character, and may be convicted, yet the Court has no power to decree the trust (*b*). The employer, therefore, as he could not profit by the conviction, was never prevented by interest from being a witness against the agent (*c*).

Parol evidence must be clear. — And *parol* evidence, where admitted, must prove the fact very *clearly* (*d*); though no objection lies against the reception of *circumstantial* evidence, as that the means of the pretended purchaser were so slender as to make it impossible he should have paid the purchase-money himself (*e*).

(*e*) Prec. Ch. 84.

(*f*) *Heron v. Heron*, Pr. Ch. 163; S. C. Freem. 246; *Skett v. Whitmore*, Freem. 280; *Kinder v. Miller*, Pr. Ch. 172; and see *Halcott v. Markant*, Pr. Ch. 168; *Hooper v. Eyles*, 2 Vern. 480; *Newton v. Preston*, Pr. Ch. 103; *Cox v. Bateman*, 2 Ves. 19; *Ambrose v. Ambrose*, 1 P. W. 321; *Deg v. Deg*, 2 P. W. 414. The earlier case of *Gascoigne v. Thwing*, 1 Vern. 366, was in harmony with the modern doctrine.

(*g*) *Ryall v. Ryall*, 1 Atk. 59; S. C. Amb. 413; *Willis v. Willis*, 2 Atk. 71; *Bartlett v. Pickersgill*, 1 Eden, 515; *Lane v. Dighton*, Amb. 409; *Knight v. Pechey*, 1 Dick. 327; S. C. cited from MS. 3 Vend. & Purch. 258;

Groves v. Groves, 3 Y. & J. 163; *Lench v. Lench*, 10 Ves. 517; *Gray v. Lucas*, W. N. 1874, p. 223.

(*a*) *Bartlett v. Pickersgill*, 1 Eden, 515; *Rastel v. Hutchinson*, 1 Dick. 44; *Lamas v. Bayly*, 2 Vern. 627; *Atkins v. Rowe*, Mose. 39; S. C. Cas. Dom. Proc. 1730.

(*b*) *Bartlett v. Pickersgill*, 1 Eden, 517.

(*c*) *King v. Boston*, 4 East, 572.

(*d*) *Gascoigne v. Thwing*, 1 Vern. 366; *Halcott v. Markant*, Pr. Ch. 168; *Willis v. Willis*, 2 Atk. 71; *Goodright v. Hodges*, 1 Watk. Cop. 229, per Lord Mansfield; *Groves v. Groves* 3 Y. & J. 163; and see *Rider v. Kidder*, 10 Ves. 364.

(*e*) *Willis v. Willis*, 2 Atk. 71, per